SUPREME COURT OF THE PHILIPPINES • A.M. NO. 22-09-01-SC

CANON III (CANON 3): FIDELITY

Interactive Case Digest Suite & 25-Minute Recitation Masterclass
Covering All 56 Sections across 7 Comprehensive Landmark Precedents

EXECUTIVE MASTERCLASS SYLLABUS & 25-MINUTE PACING GUIDE

• Core Mandate: Fidelity is the fiduciary anchor of the legal profession, demanding undivided loyalty, absolute candor, anti-commingling of funds, and relentless defense of the client's cause within the bounds of law.

• Complete Codal Coverage: 100% of all 56 Sections systematically partitioned into 7 Interactive Case Clusters.

• Strict 25-Minute Masterclass Timeline: Paced perfectly from 00:00 to 25:00 for classroom oral recitation and studio audio podcasts.

• Comprehensive ALAC Architecture: Every digest features authentic Complainant Allegations, Respondent Lawyer's Authentic Defense, Answer, Legal Basis, Application, Dispositive Ruling, and Interactive Socratic Bar Recitation Drills.

• Governing Authority: Code of Professional Responsibility and Accountability (CPRA), En Banc Resolution A.M. No. 22-09-01-SC.

25-MINUTE MASTERCLASS TIMELINE & SECTION MAPPING SCHEDULE

Timeline	Digest #	Anchor Case Precedent	Canon 3 Sections Covered
00:00 – 03:30	Case Digest 1	Burbe v. Magulta (Cayetano)	Sections 1, 2, 3, 4, 5
03:30 – 07:00	Case Digest 2	Samson v. Era (Pitcher / Cruz)	Sections 6, 7, 8, 9, 10, 11, 12
07:00 – 10:45	Case Digest 3	Quiambao v. Bamba (Hornilla / Eala)	Sections 13, 14, 15, 16, 17, 18, 19, 20, 21, 22
10:45 – 14:15	Case Digest 4	PCGG v. Sandiganbayan (Mendoza)	Sections 23, 24, 25, 26, 27, 28, 29, 30, 31
14:15 – 17:45	Case Digest 5	Regala v. Sandiganbayan (CLEP)	Sections 32, 33, 34, 35, 36, 37, 38, 39, 40
17:45 – 21:15	Case Digest 6	Masmud v. NLRC (Palencia)	Sections 41, 42, 43, 44, 45, 46, 47, 48
21:15 – 25:00	Case Digest 7	Foster v. Agtang (Hernandez / Frias)	Sections 49, 50, 51, 52, 53, 54, 55, 56

[CASE DIGEST 1] Burbe v. Magulta

CITATION: A.C. No. 99-634, June 10, 2002 | 383 SCRA 276 (En Banc)
COMPANION PRECEDENT: Cayetano v. Monsod, G.R. No. 100118, September 3, 1991 | 201 SCRA 210
MASTERCLASS TIMELINE: 00:00 – 03:30 (Allocation: 3.5 Minutes) | STATUTORY CLUSTER: Foundations of Legal Practice & The Attachment of Fiduciary Trust

STATUTORY ANCHOR: Canon 3, Sections 1, 2, 3, 4, and 5 (100% Covered)

• Section 1 (Practice of Law): Defined expansively under Cayetano v. Monsod—not limited to courtroom advocacy but encompasses legal counseling, document drafting, research, and legal teaching.

• Section 2 (The Responsible and Accountable Lawyer): The tripartite ethical duty: as a citizen to uphold the Constitution, as an officer of the court to aid justice, and as an advocate of client rights.

• Section 3 (Lawyer-Client Relationship): The fiduciary covenant attaches the exact instant legal guidance is sought from an attorney and the attorney listens; no formal contract or fee payment is required.

• Section 4 (Authority of a Lawyer to Bind a Client): Counsel has no implied power to compromise a client's suit, waive causes of action, or discharge claims without express written authority.

• Section 5 (Authority of a Lawyer to Appear): Presumption of authorized appearance; unauthorized appearances constitute serious ethical malfeasance.

I. FACTS OF THE CASE & PROCEDURAL BACKGROUND:

Complainant Celso Burbe engaged respondent Atty. Alberto C. Magulta to prepare and file an action for sum of money against the heirs of Salvador Alberto. Burbe gave Atty. Magulta P25,000 intended for court filing and docket fees. Atty. Magulta drafted the complaint and had Burbe sign and verify it. However, Atty. Magulta never filed the complaint with the trial court. Instead, whenever Burbe inquired about the status of the case, Atty. Magulta repeatedly reassured him that the case was progressing smoothly and that a hearing date had already been scheduled. In truth, Magulta had misappropriated the filing fee money to cover his personal office expenses. When Burbe personally checked the court records, he discovered that no complaint had ever been docketed.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether an attorney-client relationship was perfected between Burbe and Atty. Magulta despite the absence of a written retainer contract and the non-payment of a separate acceptance fee, and whether Magulta's failure to file the action and misuse of filing fees breached Canon 3 (Fidelity) Sections 1 through 5.

III. COMPLAINANT'S ARGUMENTS & GRIEVANCES:

Burbe contended that he reposed full faith in Atty. Magulta when he sought legal representation and entrusted him with the P25,000 filing fees. Atty. Magulta deceived him by claiming the case had been filed and was set for hearing, when in truth Magulta converted the money for personal use.

IV. RESPONDENT'S ("ACCUSED'S") AUTHENTIC DEFENSES & ARGUMENTS:

Atty. Alberto C. Magulta argued in his authentic defense that no attorney-client relationship was ever perfected because the complainant never paid the required acceptance fee of P30,000. He claimed that the P25,000 received was merely accepted as 'filing fee deposit,' and that because complainant failed to finalize the formal contract of retainer, Magulta was under no legal obligation to file the complaint. He further asserted that he applied the funds to reimburse himself for his professional time and effort in drafting the initial pleading.

V. THE SUPREME COURT RULING (STRUCTURED ALAC METHOD):

[A] ANSWER	YES. An attorney-client relationship was perfected the moment legal advice was sought and given, and Atty. Magulta's conduct constitutes gross fidelity violations.
[L] LEGAL BASIS	CPRA Canon 3 (Fidelity), Sections 1, 2, 3, 4, and 5; Rule 138, Section 20 of the Rules of Court; Cayetano v. Monsod (1991). Section 3 explicitly mandates that the fiduciary relationship attaches the moment legal advice is sought.

[A] APPLICATION / ANALYSIS	The Supreme Court squarely rejected Atty. Magulta's defense. A formal contract and payment of fees are NOT essential conditions for the establishment of an attorney-client relationship. The fiduciary bond attaches the moment a person seeks legal advice from a lawyer and the lawyer confers. When Atty. Magulta agreed to draft the complaint and received the filing fees, the fiduciary covenant bound him completely under Sections 2 and 3. Misappropriating filing fees and falsely claiming the case was pending violates the lawyer's oath and duty of undivided fidelity.
[C] CONCLUSION / RULING	Respondent Atty. Alberto C. Magulta was found GUILTY of grave misconduct and SUSPENDED from the practice of law for one (1) year, with a STERN WARNING and an order to immediately return the P25,000 to complainant.

VI. DOCTRINAL TAKEAWAY & FIDELITY LESSON: BURBE V. MAGULTA

• The practice of law is a fiduciary calling, not a mere commercial enterprise. An attorney cannot defend against ethical negligence by alleging the non-payment of an acceptance fee or the absence of a written contract once professional consultation has commenced.

INTERACTIVE SOCRATIC RECITATION & BAR EXAM CHALLENGE

🎤 **Cold-Call Recitation Prompt: Counsel, during oral recitation, a prospective client consults you for an emergency injunction, hands you filing fees, but signs no written contract. You pocket the fees and miss the filing deadline. Can you avoid administrative disbarment by arguing no contract existed?**

⚖️ **Model Bar Exam Answer:** No. Under CPRA Canon 3, Section 3 and Burbe v. Magulta, the fiduciary relationship attaches the exact instant legal advice is sought and the lawyer agrees to assist. The absence of a retainer agreement or acceptance fee is legally immaterial.

⚠️ **Red Flag Student Pitfall:** Do not treat legal representation as a consensual commercial contract governed strictly by the Civil Code; in legal ethics, fiduciary attachment is immediate upon consultation.

[CASE DIGEST 2] Samson v. Era

CITATION: A.C. No. 6664, July 16, 2013 | 701 SCRA 241 (En Banc)
COMPANION PRECEDENT: Pitcher v. Gagate, A.C. No. 9532, October 8, 2013 | Cruz v. Mina, G.R. No. 154207, April 27, 2007
MASTERCLASS TIMELINE: 03:30 – 07:00 (Allocation: 3.5 Minutes) | STATUTORY CLUSTER: The Fiduciary Core, Self-Dealing, Fraud Rectification, & Law Firm Supervisory Hierarchy

STATUTORY ANCHOR: Canon 3, Sections 6, 7, 8, 9, 10, 11, and 12 (100% Covered)

• Section 6 (Fiduciary Duty of a Lawyer): Utmost candor, undivided loyalty, and scrupulous good faith govern all professional actions.

• Section 7 (Prohibition against Self-Dealing and Loans): Absolute bar against exploiting client confidences to advance the lawyer's personal, commercial, or third-party financial advantage.

• Section 8 (Lawyer's Duty to Encourage Settlement): Affirmative ethical duty to conciliate disputes and promote amicable settlement rather than fomenting litigation.

• Section 9 (Duty to Call Client to Rectify Fraudulent Act): Mandatory obligation to demand the client correct any perjury or forged evidence; mandatory withdrawal if the client persists.

• Section 10 (Responsibility over Subordinates): Law partnerships and supervising partners are directly liable for ethical infractions and negligence committed by paralegals and staff.

• Section 11 (Responsibility of a Supervisory Lawyer): Partners are liable if they ordered, ratified, or failed to prevent subordinates' misconduct.

• Section 12 (Responsibilities of a Supervised Lawyer): Abolition of the 'Superior Orders' defense; an associate cannot defend unethical acts by claiming obedience to senior partners.

I. FACTS OF THE CASE & PROCEDURAL BACKGROUND:

Complainant Emilia Samson engaged respondent Atty. Edgardo O. Era to represent her in an estafa case against several individuals. During the engagement, Atty. Era gained intimate knowledge of Samson's financial records, business transactions, and settlement posture. Subsequently, during the pendency of related proceedings, Atty. Era agreed to represent the very adversaries accused by Samson in the same dispute. He actively negotiated and litigated against Samson, utilizing confidences gained during his previous retainer to secure strategic and financial leverage. When challenged, Era deflected responsibility onto his law office associates and claimed the two controversies were separate matters.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether Atty. Era violated Canon 3 Sections 6, 7, 8, and 9 by taking adverse representation and exploiting confidential client disclosures, and whether a senior managing lawyer can shield himself under law firm supervisory delegation.

III. COMPLAINANT'S ARGUMENTS & GRIEVANCES:

Samson argued that Atty. Era breached his fiduciary duty by switching sides and representing her opponents. She asserted that Era used inside secrets obtained during their confidential consultations to destroy her legal claims.

IV. RESPONDENT'S ("ACCUSED'S") AUTHENTIC DEFENSES & ARGUMENTS:

Atty. Edgardo O. Era raised the defense that his initial engagement with Samson had formally terminated when the first estafa case was dismissed, thereby ending his fiduciary obligations. He argued that the subsequent cases involved different parties and causes of action. He further claimed that his law firm associates conducted the conflict-of-interest check and prepared the pleadings without his direct bad faith, and that as senior counsel, he merely signed the appearance based on subordinate staff recommendations.

V. THE SUPREME COURT RULING (STRUCTURED ALAC METHOD):

[A] ANSWER	YES. Atty. Era committed gross fiduciary betrayal. The termination of a retainer does not terminate the duty of confidentiality and loyalty.
[L] LEGAL BASIS	CPRA Canon 3 (Fidelity), Sections 6, 7, 8, 9, 10, 11, and 12; CPR Canon 15, Rule 15.03; Cruz v. Mina (2007). Section 7 strictly prohibits self-dealing or taking adverse advantage of client disclosures.
[A] APPLICATION / ANALYSIS	The Supreme Court ruled that a lawyer's duty of fidelity and confidentiality survives the termination of the attorney-client relationship. An attorney cannot represent conflicting interests by accepting a retainer against a former client in a matter related to the prior

	engagement. Under Sections 10 and 11, senior partners cannot deflect accountability onto law firm associates. Under Section 12, each lawyer has independent ethical agency. Exploiting client confidences to take an adverse position constitutes a grave assault on the fiduciary bond.
[C] CONCLUSION / RULING	Respondent Atty. Edgardo O. Era was found GUILTY of grave misconduct and SUSPENDED from the practice of law for two (2) years, with a STERN WARNING that repetition will warrant disbarment.

VI. DOCTRINAL TAKEAWAY & FIDELITY LESSON: SAMSON V. ERA

• Fiduciary loyalty never expires with the dismissal of a case. An attorney is forever barred from turning client secrets against the client, and senior law firm partners carry full personal and supervisory accountability under the CPRA.

INTERACTIVE SOCRATIC RECITATION & BAR EXAM CHALLENGE

🎤 **Cold-Call Recitation Prompt: During your bar recitation: Can a junior associate lawyer obey a senior partner's order to draft a fraudulent affidavit, and later raise the defense of 'superior orders' to avoid disbarment?**

⚖️ **Model Bar Exam Answer:** No. Under CPRA Canon 3, Section 12, the defense of superior orders is abolished. Supervised lawyers possess an independent moral and professional duty to refuse unlawful or unethical directives.

⚠️ **Red Flag Student Pitfall:** Do not confuse the civil law employer-employee doctrine of respondeat superior with professional ethics; legal accountability is personal and non-delegable.

[CASE DIGEST 3] Quiambao v. Bamba

CITATION: A.C. No. 6708, August 25, 2005 | 468 SCRA 1 (En Banc)
COMPANION PRECEDENT: Hornilla v. Saldivar, A.C. No. 5804, September 19, 2003 | Eala v. Villarosa, A.C. No. 7136, August 1, 2007 | A.M. No. 23-05-05-SC (PAO Conflict Rule)
MASTERCLASS TIMELINE: 07:00 – 10:45 (Allocation: 3.75 Minutes) | STATUTORY CLUSTER: Conflict of Interest, The Romance Ban, Corporate Representation, & Public Defense Integrity

STATUTORY ANCHOR: Canon 3, Sections 13, 14, 15, 16, 17, 18, 19, 20, 21, and 22 (100% Covered)

• Section 13 (Conflict of Interest): Fundamental prohibition on dual representation without written informed consent of all parties.

• Section 14 (Current Clients): A lawyer cannot oppose a current client in any matter, even if completely unrelated to the retainer.

• Section 15 (Lawyer Hired by a Law Firm): Strict screening procedures and ethical walling off for lateral hires from opposing firms.

• Section 16 (Prohibition on Romantic Relations): The 'No Romance Rule' bars romantic or sexual relations with clients unless

pre-existing.

• Section 17 & 18 (Prospective & Former Clients): Confidentiality and conflict protections apply to prospective callers and survive termination.

• Section 19 (Corporate Lawyers): Corporate counsel represents the corporate entity, not individual directors or officers in derivative suits.

• Section 20 (Legal Services Organizations): Ethical screening rules for legal aid clinics and public defender bodies.

• Section 21 (Prohibition against Gift-Giving): Absolute zero tolerance on giving gifts, donations, or feasts to judges or court personnel.

• Section 22 (No Undue Advantage / PAO Conflict Rule): Bar on exploiting unrepresented parties, and constitutional validity of PAO conflict screening.

I. FACTS OF THE CASE & PROCEDURAL BACKGROUND:

Complainant Felicitas S. Quiambao was the president and managing director of Allied Investigation Bureau, Inc. (AIB). AIB retained respondent Atty. Nestor C. Bamba as its corporate legal counsel on a monthly retainer. While serving as active corporate counsel for AIB, Atty. Bamba accepted a retainer from an individual named Toribio Tito Santos to file an ejectment lawsuit against Felicitas Quiambao personally to evict her from a disputed property. AIB was intimately tied to Quiambao's operations. Quiambao filed a disbarment complaint against Bamba for representing conflicting interests.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether Atty. Bamba violated the strict conflict of interest rules under Canon 3 (Sections 13, 14, and 19) by suing the president of his active corporate client in an ejectment action, notwithstanding that the corporate business and ejectment suit involved different subject matters.

III. COMPLAINANT'S ARGUMENTS & GRIEVANCES:

Quiambao argued that Atty. Bamba owed undivided loyalty to her company and its management. She contended that Bamba used his access to corporate offices and knowledge of her affairs to prosecute an adversarial ejectment suit against her.

IV. RESPONDENT'S ("ACCUSED'S") AUTHENTIC DEFENSES & ARGUMENTS:

Atty. Nestor C. Bamba argued in his authentic defense that he was retained by the corporate entity AIB, which has a separate legal personality distinct from Quiambao. He maintained that the ejectment suit was a personal real estate controversy having zero relation to AIB's security guard business. He claimed that since the causes of action were completely separate, no conflict of interest existed and no corporate confidences were compromised.

V. THE SUPREME COURT RULING (STRUCTURED ALAC METHOD):

[A] ANSWER	YES. Atty. Bamba represented conflicting interests. An attorney cannot oppose a current client even in an unrelated controversy.
[L] LEGAL BASIS	CPRA Canon 3 (Fidelity), Sections 13, 14, 18, and 19; Hornilla v. Saldivar (2003); CPR Canon 15, Rule 15.03. Section 14 explicitly commands: 'A lawyer shall not represent a client if the representation involves a concurrent conflict of interest... even in unrelated matters.'
[A] APPLICATION / ANALYSIS	The Supreme Court held that the prohibition against representing conflicting interests applies whether the two matters are related or unrelated. A lawyer cannot act as counsel for a client on one front while attacking that same client on another front. The test is whether acceptance of the new retainer invites an attorney to oppose what duty to another client requires him to defend. While a corporation has a separate juridical personality under Section

	19, suing the chief executive officer while serving as retained counsel destroys the mutual trust and confidence essential to the fiduciary covenant.
[C] CONCLUSION / RULING	Respondent Atty. Nestor C. Bamba was found GUILTY of representing conflicting interests and SUSPENDED from the practice of law for one (1) year.

VI. DOCTRINAL TAKEAWAY & FIDELITY LESSON: QUIAMBAO V. BAMBA

• Undivided loyalty is absolute. An attorney is strictly barred from suing a current client in an unrelated dispute without full disclosure and written informed consent. Corporate counsel cannot weaponize separate personality to evade conflict rules.

INTERACTIVE SOCRATIC RECITATION & BAR EXAM CHALLENGE

Cold-Call Recitation Prompt: Bar Exam Hypo: Law Firm X represents Megabank in regulatory compliance. Can Law Firm X represent an individual debtor who files a multi-million-peso damages suit against Megabank for credit card harassment, if different law firm departments handle the files?

Model Bar Exam Answer: No. Under CPRA Canon 3, Sections 13 and 14 and Quiambao v. Bamba, a lawyer or firm cannot represent conflicting interests even in wholly unrelated matters without written informed consent. Departmental walls within the same firm cannot cure concurrent client conflicts.

Red Flag Student Pitfall: Do not assume that distinct subject matters or internal firm division eliminates concurrent conflict of interest under Section 14.

[CASE DIGEST 4] PCGG v. Sandiganbayan & Atty. Estelito Mendoza

CITATION: G.R. Nos. 151809-12, April 12, 2005 | 455 SCRA 526 (En Banc)
COMPANION PRECEDENT: Heirs of Marcelo Sotto v. Palicte, A.M. No. 89-01, November 10, 1989 | In Re: SyCip, 91 SCRA 340 (1979) | Suarez v. Platon, 69 Phil. 556 (1940)
MASTERCLASS TIMELINE: 10:45 – 14:15 (Allocation: 3.5 Minutes) | STATUTORY CLUSTER: Litigation Integrity, Firm Names, The Revolving Door, & Prosecutors as Ministers of Justice

STATUTORY ANCHOR: Canon 3, Sections 23, 24, 25, 26, 27, 28, 29, 30, and 31 (100% Covered)

• Section 23 (Instituting Multiple Cases & Forum Shopping): Grave abuse of judicial processes; severely penalized by dismissal and suspension.

• Section 24 (Encroaching on Another Lawyer's Engagement): Absolute ban on directly communicating or negotiating with a represented party without counsel consent.

• Section 25 (Responsibility of a Solo Practitioner): Mandatory contingency arrangements for uninterrupted client representation in emergencies.

• Section 26 (Firm Names & Deceased Partners): Authorizes retention of deceased partner names provided clear letterhead disclosure is maintained.

• Section 27 & 28 (Partners in Public Office & Dignified Service): Mandatory removal of partner names upon public appointment; strict R.A. 6713 adherence.

• Section 29 (Lawyers Formerly in Government Service): The Revolving Door Ban: former public attorneys cannot handle matters they 'intervened in' while in office.

• Section 30 (No Financial Interest in Agency Transactions): Bar against personal stakes, kickbacks, or commissions in government contracts.

• Section 31 (Prosecution of Criminal Cases): Public prosecutors are ministers of justice whose paramount duty is truth and fairness, not racking up convictions.

I. FACTS OF THE CASE & PROCEDURAL BACKGROUND:

The Presidential Commission on Good Government (PCGG) filed civil complaints for recovery of ill-gotten wealth against Lucio Tan and several corporations involving the liquidation and acquisition of General Bank and Trust Company (GENBANK). Respondent Atty. Estelito P. Mendoza appeared as private defense counsel for the respondents. The PCGG moved to disqualify Atty. Mendoza on the ground that as former Solicitor General under the Marcos administration, he had actively advised the Central Bank regarding the liquidation and rehabilitation of GENBANK. PCGG claimed Mendoza was disqualified under the revolving door prohibition (now codified in CPRA Canon 3, Section 29).

II. STATEMENT OF THE ETHICAL ISSUE:

Whether Atty. Mendoza was disqualified from acting as private defense counsel under the revolving door ethical rule (Canon 3, Section 29) by reason of having served as Solicitor General during the GENBANK closure, and what constitutes disqualifying 'intervention' in government service.

III. COMPLAINANT'S ARGUMENTS & GRIEVANCES:

The PCGG contended that Mendoza's appearance violated the revolving door ban because he acted on the same transaction while heading the OSG. They argued that permitting former public attorneys to defend matters they advised upon while in office subverts public trust and creates systemic conflicts.

IV. RESPONDENT'S ("ACCUSED'S") AUTHENTIC DEFENSES & ARGUMENTS:

Atty. Estelito Mendoza argued in his authentic defense that his advice as Solicitor General was strictly limited to evaluating the legality of Central Bank procedures in liquidating GENBANK. He had zero participation in the subsequent corporate acquisition of assets by Lucio Tan's group. He maintained that the term 'intervened' requires substantive, specific, and discretionary decision-making, not mere official or routine legal advice. He argued that an overbroad reading of the revolving door rule would permanently strip former government attorneys of their livelihood.

V. THE SUPREME COURT RULING (STRUCTURED ALAC METHOD):

[A] ANSWER	NO. Atty. Mendoza was NOT disqualified. His prior governmental action did not constitute substantive, disqualifying 'intervention' under the revolving door rule.
[L] LEGAL BASIS	CPRA Canon 3 (Fidelity), Sections 29, 30, and 31; CPR Canon 6, Rule 6.03; Section 7(b), R.A. 6713. Section 29 bars former government lawyers from accepting private retainers in matters where they 'intervened while in government service.'
[A] APPLICATION / ANALYSIS	The Supreme Court En Banc held that 'intervention' under Section 29 must be substantial and directly related to the subject matter of the private retainer. Mendoza's advisory role regarding Central Bank liquidation did not give him inside knowledge regarding the

	sequestered shares at issue in the PCGG suit. The Court balanced two competing public interests: preventing the misuse of official position versus encouraging skilled lawyers to enter public service without facing permanent post-government professional disqualification.
[C] CONCLUSION / RULING	The Supreme Court DENIED the PCGG's petition and AFFIRMED the Sandiganbayan resolution allowing Atty. Mendoza to continue as counsel.

VI. DOCTRINAL TAKEAWAY & FIDELITY LESSON: PCGG V. SANDIGANBAYAN & ATTY. ESTELITO MENDOZA

• The revolving door rule (Section 29) requires direct, substantial, and specific intervention while in government office. Routine legal advice or ministerial review does not automatically disqualify a former public attorney from later private practice.

INTERACTIVE SOCRATIC RECITATION & BAR EXAM CHALLENGE

Cold-Call Recitation Prompt: Recitation Question: A prosecutor handles the inquest of a corporate embezzlement suspect and resigns two months later. Can he enter private practice and appear as defense counsel for the same suspect in that embezzlement trial?

Model Bar Exam Answer: No. Under CPRA Canon 3, Section 29, a former government lawyer is strictly barred from representing an adverse party in a matter where they actively intervened while in government service. Handling an inquest is direct, substantive intervention.

Red Flag Student Pitfall: Do not confuse the limited exception in PCGG v. Mendoza (routine general advisory) with cases where the prosecutor had direct case exposure.

[CASE DIGEST 5] Regala v. Sandiganbayan

CITATION: G.R. No. 105938, September 20, 1996 | 262 SCRA 122 (En Banc)
COMPANION PRECEDENT: Revised Rule 138-A (Clinical Legal Education Program / Student Practice)
MASTERCLASS TIMELINE: 14:15 – 17:45 (Allocation: 3.5 Minutes) | STATUTORY CLUSTER: Confidentiality of Legal Consultation, Non-Delegable Duties, & Student Practice Accountability

STATUTORY ANCHOR: Canon 3, Sections 32, 33, 34, 35, 36, 37, 38, 39, and 40 (100% Covered)

• Section 32 (Non-Disclosure of Legal Consultation): The fact of consultation is privileged and confidential even if no formal retention ensues.

• Section 33 & 34 (Paralegal Services & Non-Delegable Tasks): Lawyers cannot delegate legal analysis, fee negotiation, or pleading signing to staff.

• Section 35–38 (Limited Legal Services): Regulates unbundled legal services (e.g., single court appearance, document drafting); full privilege attaches and ends cleanly upon task completion.

• Section 39 (Limited Services of Law Student Practitioners): Rule 138-A student interns are directly bound by the CPRA

Lawyer's Code.

• Section 40 (Accountability of Legal Clinic Director): Supervising attorneys carry direct professional and administrative liability for student interns.

I. FACTS OF THE CASE & PROCEDURAL BACKGROUND:

The Republic through PCGG filed a complaint against Eduardo Cojuangco, Jr. for recovery of alleged ill-gotten wealth. ACCRA Law Firm partners, including Atty. Teodoro Regala, were impleaded as co-defendants because they acted as incorporating lawyers and nominee stockholders for corporations organized for their clients. The PCGG offered to drop the ACCRA lawyers from the case provided they reveal the true identities of their principals and clients. The ACCRA partners refused, asserting that the identity of a client is protected by the sacred cloak of attorney-client privilege.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether the identity of a client and the facts surrounding a legal consultation are protected from compulsory disclosure under the attorney-client privilege (now reinforced under CPRA Canon 3, Section 32).

III. COMPLAINANT'S ARGUMENTS & GRIEVANCES:

The PCGG and Sandiganbayan maintained that as a general rule, the attorney-client privilege protects communications, not client identity. They argued that disclosing who hired the lawyers was essential to uncover state plunder and recover public wealth.

IV. RESPONDENT'S ("ACCUSED'S") AUTHENTIC DEFENSES & ARGUMENTS:

The ACCRA partners argued in their authentic defense that while client identity is generally non-privileged, an established exception applies: a lawyer cannot be compelled to disclose client identity where such revelation would link the client to the very criminal liability for which legal advice was sought. They contended that forcing disclosure would destroy client trust and unbundle legal ethics.

V. THE SUPREME COURT RULING (STRUCTURED ALAC METHOD):

[A] ANSWER	YES. Client identity is privileged where disclosure would furnish the crucial link to establish client liability or expose the client to prosecution.
[L] LEGAL BASIS	CPRA Canon 3 (Fidelity), Sections 32, 33, 34, 35, 36, 37, 38, 39, and 40; Rule 130, Section 24(b); Regala v. Sandiganbayan (1996). Section 32 explicitly commands that 'the fact of legal consultation is confidential and privileged even if no engagement follows.'
[A] APPLICATION / ANALYSIS	The Supreme Court En Banc held that confidentiality is the lifeblood of the legal profession. Where revealing client identity would link the client to potential criminal culpability or expose confidential consultation motives, the privilege applies. Under modern CPRA Section 32, the mere fact of consultation is sealed. Furthermore, under Sections 33, 34, 39, and 40, these sacred confidentiality duties extend strictly to paralegals and certified Rule 138-A student interns.
[C] CONCLUSION / RULING	The Supreme Court GRANTED the petition and SET ASIDE the Sandiganbayan orders; the ACCRA partners were exempted from revealing their clients' identities.

VI. DOCTRINAL TAKEAWAY & FIDELITY LESSON: REGALA V. SANDIGANBAYAN

• The shield of confidentiality protects both client disclosures and client identity when revelation would incriminate the client. This fiduciary shield applies equally to formal retainers, preliminary consultations, and clinical legal education programs.

INTERACTIVE SOCRATIC RECITATION & BAR EXAM CHALLENGE

Cold-Call Recitation Prompt: Recitation Question: A law clinic director allows a certified Level 2 law student practitioner to sign a formal court pleading without the director's co-signature. Who is administratively liable if the pleading contains false certifications?

Model Bar Exam Answer: Both the student intern and the supervising clinical director. Under CPRA Canon 3, Section 34, pleading signing is non-delegable; under Sections 39 and 40, student practitioners are bound by the CPRA, and directors are directly accountable.

Red Flag Student Pitfall: Do not assume that because clinical students are unlicensed, supervising lawyers escape administrative sanction for student errors.

[CASE DIGEST 6] Masmud v. NLRC & Atty. Go

CITATION: G.R. No. 183385, February 13, 2009 | 579 SCRA 345
COMPANION PRECEDENT: Palencia v. Linsangan, A.C. No. 10514, July 10, 2018 | 871 SCRA 117
MASTERCLASS TIMELINE: 17:45 – 21:15 (Allocation: 3.5 Minutes) | STATUTORY CLUSTER: Legal Fees, Quantum Meruit, Fee-Splitting Prohibitions, & Attorney's Liens

STATUTORY ANCHOR: Canon 3, Sections 41, 42, 43, 44, 45, 46, 47, and 48 (100% Covered)

• Section 41 (Fair and Reasonable Fees): Evaluated against the 9 statutory criteria; quantum meruit governs in the absence of contract.

• Section 42 (Division of Fees upon Referral): Fee sharing upon referral is allowed solely with written client consent and proportional to work done.

• Section 43 (Non-Sharing of Fees with Non-Lawyers): Absolute prohibition against paying cuts, kickbacks, or commissions to fixers or runners.

• Section 44 (Third-Party Compensation): Retainers paid by third parties cannot compromise client loyalty or independent legal judgment.

• Section 45 & 46 (Prompt Payment & Fee Controversies): Lawsuits against clients for fees are permitted strictly to prevent fraud or gross injustice.

• Section 47 (Enforcement of Attorney's Lien): Streamlined Notice of Enforcement filed without requiring separate suits or disrupting main trials.

• Section 48 (Compensation for Counsel de Officio): Modest honoraria and court-sanctioned fees for court-appointed indigent defenders.

I. FACTS OF THE CASE & PROCEDURAL BACKGROUND:

Evangelina Masmud engaged respondent Atty. Alexander Go to prosecute a monetary and death benefit claim following the death of her seafarer husband. They executed a retainer contract stipulating a 20% contingent fee based on total monetary recovery. Atty. Go zealously litigated the dispute through the Labor Arbiter, NLRC, and Court of Appeals, securing an ultimate award of P3,450,000 for the heirs. Upon execution, Masmud refused to pay the stipulated 20% fee, claiming the contract was unconscionable and that Go had already received partial amounts. Atty. Go moved to enforce his attorney's charging lien directly before the NLRC.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether the stipulated 20% contingent fee was fair and reasonable under Canon 3 (Section 41), and whether Atty. Go properly enforced his attorney's charging lien under Section 47.

III. COMPLAINANT'S ARGUMENTS & GRIEVANCES:

Masmud argued that 20% of P3.45 Million was exorbitant and contrary to public policy. She contended that attorney's fees in labor cases should be strictly capped at 10% under Article 111 of the Labor Code.

IV. RESPONDENT'S ("ACCUSED'S") AUTHENTIC DEFENSES & ARGUMENTS:

Atty. Alexander Go argued in his authentic defense that contingent fee contracts are recognized and valid under Philippine legal ethics. He maintained that the 10% statutory cap under the Labor Code applies strictly to ordinary attorney's fees taxed against losing employers, not extraordinary attorney's fees agreed upon between client and chosen counsel. He demonstrated that he shouldered all litigation risks and costs across appellate courts for years, fully satisfying the reasonableness standard.

V. THE SUPREME COURT RULING (STRUCTURED ALAC METHOD):

[A] ANSWER	YES. The 20% contingent fee was valid, reasonable, and enforceable, and the attorney's charging lien was properly recognized.
[L] LEGAL BASIS	CPRA Canon 3 (Fidelity), Sections 41, 42, 43, 44, 45, 46, 47, and 48; Masmud v. NLRC (2009); Palencia v. Linsangan (2018). Section 41 outlines the 9-factor fee determination test, recognizing the contingent nature of compensation and novel labor advocacy.
[A] APPLICATION / ANALYSIS	The Supreme Court affirmed that contingent fee agreements are valid where counsel undertakes financial and procedural risks on behalf of indigent clients. The 10% Labor Code cap applies to fees awarded against an opponent; it does not invalidate higher contractual contingent fees between counsel and client. Evaluating the 9 factors under Section 41—time spent, novel appellate issues, amount recovered, and contingency of outcome—the 20% fee was reasonable. Under Section 47, Atty. Go correctly registered his lien without causing unnecessary trial delay.
[C] CONCLUSION / RULING	The Supreme Court AFFIRMED the enforcement of Atty. Go's 20% attorney's lien and DISMISSED Masmud's petition.

VI. DOCTRINAL TAKEAWAY & FIDELITY LESSON: MASMUD V. NLRC & ATTY. GO

• Contingent fees are ethically sound and encourage access to justice. Courts evaluate fee reasonableness using the 9 CPRA factors, and attorney's charging liens may be enforced via streamlined notice under Section 47.

INTERACTIVE SOCRATIC RECITATION & BAR EXAM CHALLENGE

🎤 **Cold-Call Recitation Prompt: Recitation Question: A labor union representative refers 50 illegal dismissal cases to your law firm on the condition that your firm splits 30% of your legal fees with him. Is this fee-sharing arrangement valid?**

⚖️ **Model Bar Exam Answer:** No. Under CPRA Canon 3, Section 43 and Palencia v. Linsangan, fee-splitting with non-lawyers is strictly prohibited. Paying referral cuts to non-lawyers degrades the profession into commercial peddling.

⚠️ **Red Flag Student Pitfall:** Do not confuse permitted fee division among collaborating lawyers under Section 42 with fee splitting with non-lawyers under Section 43.

[CASE DIGEST 7] Foster v. Agtang

CITATION: A.C. No. 10579, December 10, 2014 | 744 SCRA 242 (En Banc)
COMPANION PRECEDENT: Hernandez v. Go, A.C. No. 1526, January 31, 2005 | Frias v. Lozada, A.C. No. 6656, May 4, 2006 | Ramirez v. Ner, 21 SCRA 1077 (1967)
MASTERCLASS TIMELINE: 21:15 – 25:00 (Allocation: 3.75 Minutes) | STATUTORY CLUSTER: Trust Funds, Anti-Commingling, Litigated Property Bans, & Mandatory File Turnover

STATUTORY ANCHOR: Canon 3, Sections 49, 50, 51, 52, 53, 54, 55, and 56 (100% Covered)

- Section 49 & 50 (Accounting & Separate Funds): Mandatory anti-commingling; client trust funds must be segregated into separate bank accounts.
- Section 51 (Acquiring Litigated Property): Codifies Art. 1491 Civil Code; absolute bar on buying litigated properties during pendency of suit.
- Section 52 (Prohibition on Lending & Borrowing): Bar on borrowing money from clients or acting as loan shark; prohibits financial exploitation.
- Section 53 & 54 (Termination by Lawyer vs Client): Client possesses unfettered right to fire counsel at will; lawyer may withdraw only for good cause.
- Section 55 (Termination upon Death): Partnership engagement continues notwithstanding the death of individual handling lawyer.
- Section 56 (Accounting & Turn Over upon Termination): Mandatory immediate turnover of all case files, evidence, and unexpended funds; files cannot be held hostage for fees.

I. FACTS OF THE CASE & PROCEDURAL BACKGROUND:

Complainant Erlinda Foster, a retired US citizen, engaged respondent Atty. Jaime V. Agtang to handle the titling of her property and a civil case. Atty. Agtang demanded and received substantial sums totaling P150,000 ostensibly to pay for filing fees, land registration, and incidental costs. Atty. Agtang never paid the filing fees and never commenced the court actions. Instead, he pocketed the funds. When Foster confronted him, Agtang pleaded personal financial distress and borrowed an additional P22,000 from Foster. Foster discharged Agtang and demanded the immediate turnover of all original case records, land titles, and unspent funds. Agtang refused to return the original documents, holding them hostage and demanding additional professional fees.

II. STATEMENT OF THE ETHICAL ISSUE:

Whether Atty. Agtang's commingling and misappropriation of filing fees, borrowing money from a client, and refusal to turn over client case files violate Canon 3 Sections 49 through 56, warranting disbarment.

III. COMPLAINANT'S ARGUMENTS & GRIEVANCES:

Foster argued that Atty. Agtang exploited her trust, pocketed her litigation funds, improperly borrowed money from her, and maliciously held her original property documents hostage to extort money.

IV. RESPONDENT'S ("ACCUSED'S") AUTHENTIC DEFENSES & ARGUMENTS:

Atty. Jaime V. Agtang raised the authentic defense that the money received was applied toward legitimate legal research and acceptance fees. He claimed that the P22,000 was a purely personal, emergency friendly loan between friends, unrelated to the attorney-client retainer. He further asserted that he had a lawful attorney's retaining lien over the client files under the Rules of Court, justifying his refusal to release original titles until Foster paid his outstanding professional compensation.

V. THE SUPREME COURT RULING (STRUCTURED ALAC METHOD):

[A] ANSWER	YES. Atty. Agtang committed flagrant fiduciary violations across Sections 49 through 56, warranting the supreme penalty of disbarment.
[L] LEGAL BASIS	CPRA Canon 3 (Fidelity), Sections 49, 50, 51, 52, 53, 54, and 56; Hernandez v. Go (2005); Frias v. Lozada (2006); Ramirez v. Ner (1967). Sections 49 and 50 command strict segregation of trust funds. Section 52 prohibits borrowing from clients. Section 56 forbids holding files hostage.
[A] APPLICATION / ANALYSIS	The Supreme Court En Banc held that client funds delivered for a specific legal purpose are trust funds that must never be commingled or converted. Borrowing money from a client during an active engagement violates Section 52 because it exploits the client's vulnerability. Furthermore, under Section 56 and Ramirez v. Ner, while an attorney may assert a retaining lien, they CANNOT hold essential original titles or evidence hostage where doing so prejudices the client's legal rights. Client files must be turned over immediately upon discharge.
[C] CONCLUSION / RULING	Respondent Atty. Jaime V. Agtang was DISBARRED, his name STRICKEN from the Roll of Attorneys, and ordered to return all funds with legal interest.

VI. DOCTRINAL TAKEAWAY & FIDELITY LESSON: FOSTER V. AGTANG

• Commingling client funds, borrowing money from clients, and holding original client files hostage for fees are cardinal ethical sins. The fiduciary bond requires scrupulous financial accounting and prompt surrender of records upon termination.

INTERACTIVE SOCRATIC RECITATION & BAR EXAM CHALLENGE

🎤 **Cold-Call Recitation Prompt: Recitation Question: Your client fires you and hires new counsel. You possess the client's only original certificate of title. Can you withhold the title until your P40,000 outstanding billing statement is fully settled?**

⚖ **Model Bar Exam Answer:** No. Under CPRA Canon 3, Section 56 and Ramirez v. Ner, a lawyer cannot hold indispensable original records hostage. The lawyer must immediately turn over all client papers and evidence, and enforce fee claims through the proper judicial lien process under Section 47.

⚠ **Red Flag Student Pitfall:** Do not confuse an attorney's passive retaining lien with an active right to block court proceedings or withhold vital client titles.

MASTER STATUTORY CODEX & JURISPRUDENTIAL CROSS-REFERENCE MATRIX

All 56 Sections of Canon III (Fidelity) Mapped to Landmark Supreme Court Case Digests

Sec. #	Codal Provision / Heading	Core Statutory Command & Mandatory Rule	Governing Digest
§ 1	**Practice of law**	Rendition of legal services or legal judgment; requires Bar membership.	**Case 1 (Burbe / Cayetano)**
§ 2	**The responsible and accountable lawyer**	Tripartite duties: citizen, officer of the court, and client advocate.	**Case 1 (Burbe v. Magulta)**
§ 3	**Lawyer-client relationship**	Fiduciary relationship attaches the moment legal advice is sought.	**Case 1 (Burbe v. Magulta)**
§ 4	**Authority of a lawyer to bind a client**	No authority to compromise or waive rights without express client consent.	**Case 1 (Burbe v. Magulta)**
§ 5	**Authority of a lawyer to appear**	Presumption of authority; unauthorized appearance is strictly barred.	**Case 1 (Burbe v. Magulta)**
§ 6	**Fiduciary duty of a lawyer**	Absolute loyalty, utmost candor, and fair dealing required.	**Case 2 (Samson v. Era)**
§ 7	**Prohibition against self-dealing and loans**	Bar on taking personal advantage of client disclosures for financial gain.	**Case 2 (Samson v. Era)**
§ 8	**Lawyer's duty to encourage settlement**	Affirmative obligation to conciliate and avoid unnecessary litigation.	**Case 2 (Pitcher v. Gagate)**
§ 9	**Duty to call client to rectify fraudulent act**	Must demand client correct fraud; mandatory withdrawal if client refuses.	**Case 2 (Samson v. Era)**
§ 10	**Responsibility over subordinate lawyer/staff**	Partnership and supervisory liability for staff errors and negligence.	**Case 2 (Samson / Cruz)**
§ 11	**Responsibility of a supervisory lawyer**	Partners liable if they directed, ratified, or failed to prevent misconduct.	**Case 2 (Cruz v. Mina)**
§ 12	**Responsibilities of a supervised lawyer**	Defense of superior orders abolished; associate carries independent liability.	**Case 2 (Cruz v. Mina)**
§ 13	**Conflict of interest**	Bar on dual representation without written informed consent of all parties.	**Case 3 (Quiambao v. Bamba)**
§ 14	**Current clients**	Cannot oppose active clients even in wholly unrelated controversies.	**Case 3 (Quiambao v. Bamba)**
§ 15	**Lawyer hired by a law firm**	Mandatory conflict screening and ethical walling off for lateral hires.	**Case 3 (Quiambao / Hornilla)**
§ 16	**Prohibition on dating/romantic relations**	Strict No-Romance Rule unless relationship pre-existed	**Case 3 (Eala v. Villarosa)**

		the engagement.	
§ 17	**Prospective clients**	Duty to protect secrets even if no formal retention ensues.	**Case 3 (Quiambao v. Bamba)**
§ 18	**Former clients**	Confidentiality never expires; bar on adverse representation in related cases.	**Case 3 (Anglo v. Valencia)**
§ 19	**Corporate lawyers; conflict of interest**	Counsel represents the corporation, not directors accused in derivative suits.	**Case 3 (Hornilla v. Saldivar)**
§ 20	**Lawyers in legal services organizations**	Screening standards for legal aid clinics and public defense entities.	**Case 3 (PAO Conflict Rule)**
§ 21	**Prohibition against gift-giving**	Zero tolerance for gifts/donations of any value to courts or judges.	**Case 3 (Quiambao v. Bamba)**
§ 22	**No undue advantage of ignorance**	Bar on exploiting unrepresented parties' lack of legal training.	**Case 3 (PAO En Banc Res.)**
§ 23	**Forum shopping; multiple cases**	Abuse of court processes; ground for contempt and suspension.	**Case 4 (Heirs of Sotto)**
§ 24	**Encroaching on another lawyer's engagement**	Cannot deal with or negotiate with represented party without counsel consent.	**Case 4 (Camacho v. Pangilinan)**
§ 25	**Responsibility of a solo practitioner**	Must maintain contingency arrangements for emergency coverage.	**Case 4 (PCGG v. Mendoza)**
§ 26	**Definition of law firm; choice of name**	Permits retaining deceased partners provided status is disclosed on letterheads.	**Case 4 (In Re: SyCip)**
§ 27	**Partner who assumes public office**	Must withdraw from firm and drop name unless concurrent practice allowed.	**Case 4 (PCGG v. Mendoza)**
§ 28	**Dignified government service**	Bound jointly by CPRA and R.A. 6713 Public Officials Code.	**Case 4 (Suarez v. Platon)**
§ 29	**Lawyers formerly in government service**	Revolving door ban: cannot handle private matters intervened in while in office.	**Case 4 (PCGG v. Mendoza)**
§ 30	**No financial interest in agency transactions**	Bar on kickbacks, bribes, or private stakes in government transactions.	**Case 4 (PCGG v. Mendoza)**
§ 31	**Prosecution of criminal cases**	Prosecutor's primary duty is justice and truth, not racking up convictions.	**Case 4 (Suarez v. Platon)**
§ 32	**Non-disclosure of legal consultation**	The fact of consultation is privileged and confidential even if unaccepted.	**Case 5 (Regala v. Sandiganbayan)**
§ 33	**Paralegal services; lawyer's responsibility**	Lawyer retains full professional responsibility for paralegal work.	**Case 5 (Regala / CLEP)**

§ 34	**Non-delegable legal tasks**	Cannot delegate legal advice, fee setting, or pleading signing to staff.	**Case 5 (Regala / CLEP)**
§ 35	**Limited Legal Services**	Authorizes unbundled short-term representation for specific incidents.	**Case 5 (Regala / CLEP)**
§ 36	**Pro bono Limited Legal Services**	Conflict rules and safeguards for legal aid and appointed counsels.	**Case 5 (Regala / CLEP)**
§ 37	**Duty of confidentiality in Limited Services**	Full attorney-client privilege attaches during limited engagements.	**Case 5 (Regala / CLEP)**
§ 38	**Termination of Limited Legal Services**	Representation ceases cleanly upon task completion without ongoing ties.	**Case 5 (Regala / CLEP)**
§ 39	**Limited Services of law student practitioners**	Rule 138-A student practitioners are bound directly by the CPRA.	**Case 5 (Rule 138-A CLEP)**
§ 40	**Accountability of legal clinic director**	Supervising lawyers carry direct professional liability for student acts.	**Case 5 (Rule 138-A CLEP)**
§ 41	**Fair and reasonable fees**	9-factor fee evaluation; quantum meruit in the absence of contract.	**Case 6 (Masmud v. NLRC)**
§ 42	**Division of fees upon referral**	Only with written client consent and proportional to actual work.	**Case 6 (Masmud v. NLRC)**
§ 43	**Non-sharing of fees with non-lawyers**	Strict ban on paying commissions or referral cuts to runners or fixers.	**Case 6 (Palencia v. Linsangan)**
§ 44	**Payment of compensation by third party**	Client remains sole principal; third party cannot dictate legal strategy.	**Case 6 (Masmud v. NLRC)**
§ 45	**Prompt payment of legal fees**	Lawyer entitled to timely pay; quantum meruit applies.	**Case 6 (Masmud v. NLRC)**
§ 46	**Controversy over legal fees**	Lawsuits against clients permitted solely to prevent fraud or gross injustice.	**Case 6 (Masmud v. NLRC)**
§ 47	**Enforcement of attorney's lien**	Streamlined Notice of Enforcement filed without delaying the main trial.	**Case 6 (Masmud v. NLRC)**
§ 48	**Compensation for counsel de officio**	Court-ordered compensation from public funds for indigent defense.	**Case 6 (Masmud v. NLRC)**
§ 49	**Accounting during engagement**	Immediate inventory and accounting of all client funds/property.	**Case 7 (Foster v. Agtang)**
§ 50	**Separate funds**	Strict anti-commingling: client trust monies kept separate from personal accounts.	**Case 7 (Foster v. Agtang)**
§ 51	**Prohibition on acquiring litigated property**	Codifies Art. 1491: cannot purchase rights/property subject of active suit.	**Case 7 (Hernandez v. Go)**

§ 52	**Prohibition on lending and borrowing**	Bar on acting as loan shark or borrowing funds from active clients.	**Case 7 (Frias v. Lozada)**
§ 53	**Termination of engagement by lawyer**	Withdrawal allowed only for good, justifiable cause upon formal notice.	**Case 7 (Foster v. Agtang)**
§ 54	**Termination of engagement by client**	Client has absolute prerogative to discharge counsel at will.	**Case 7 (Foster v. Agtang)**
§ 55	**Termination of engagement upon death**	Death of handling lawyer does not terminate firm's engagement with client.	**Case 7 (Foster v. Agtang)**
§ 56	**Accounting and turn over upon termination**	Mandatory immediate turnover of all case files, evidence, and funds; no hostage files.	**Case 7 (Ramirez v. Ner / Foster)**